

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-13

INTERNATIONAL EXPRESS TRUCKING, INC.,
COMPLAINANT,

V.

ZIM INTEGRATED SHIPPING SERVICES LTD.,
RESPONDENT.

RESPONDENT’S ANSWER TO COMPLAINT

Respondent Zim Integrated Shipping Services Ltd. (“ZIM”), through its attorneys, hereby files its answer to the complaint of International Express Trucking, Inc. (“Complainant” or “IXT”) in this proceeding.

1. ZIM lacks sufficient information to admit or deny.
2. Admitted.
3. Denied.
4. The first sentence requires no response. As to the second sentence, the Complaint speaks for itself.
5. Admitted.
6. Denied.
7. Admit that IXT is a motor carrier that provides motor carrier transportation services. ZIM lacks sufficient information to admit or deny IXT is registered with the Federal Motor Carrier Safety Administration.

8. Admit that ZIM instructed IXT to return containers to the Norfolk Southern rail ramp. ZIM lacks sufficient information to admit or deny the efforts IXT did or did not make to return each and every container that is the subject of the complaint.

9. Deny that in all cases ZIM designated a return location that rejected the container return due to allocation having been met, congestion issues, a lack of space and/or weather conditions.

10. ZIM admits that it received some communications from IXT regarding alleged difficulties in returning empty containers. ZIM denies that IXT communicated consistently and further denies that ZIM repeatedly ignored IXT's requests.

11. Admitted.

12. Denied.

13. ZIM denies that the invoices were not timely provided. ZIM admits that it refused to waive charges for which no proof of efforts to return the empty containers was provided.

14. Admit that IXT made demands of ZIM with respect to the detention charges, but deny that these were efforts to resolve the dispute, including the final demand in which counsel for IXT presented ZIM with a "take it or leave it" demand and less than 48 hours to consider same.

15. Admit that ZIM invoiced IXT for \$114,614.00 in detention charges. Deny such charges were invoiced due to ZIM failing to designate a return location and/or identify a container return location that would accept the container returns.

16. The Shipping Act speaks for itself.

17. Admitted.

18. Admit that ZIM's practices and regulations relating to the assessment of demurrage/detention are directly related to receiving, handling, storing, or delivering property, and

further admit that such practices and regulations are followed on a normal, customary, and continuous basis. Deny such practices and regulations are unjust and unreasonable.

19. Denied.
20. Denied.
21. Denied.
22. Denied.
23. This paragraph requires no response.

AFFIRMATIVE DEFENSES

1. The Commission lacks subject matter jurisdiction.
2. The Complaint fails to state a claim for which relief may be granted.
3. Complainant is barred from recovering by the doctrine of unclean hands.
4. Complainant is not entitled to reparations because it has suffered no harm.
5. Respondent's conduct was reasonable under the totality of the circumstances.

WHEREFORE, Respondent prays that after due oral hearing, an order be made dismissing the Complaint.

DATE: May 20, 2022

Respectfully submitted,



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VERIFICATION

I, Mark E. Newcomb, am Counsel and Vice President of Respondent Zim Integrated Shipping Services Ltd. and hereby declare and attest under penalty of perjury that I have read the forgoing Answer and believe, to the best of my knowledge, information, and belief, that the facts stated therein are true and correct.

May 19, 2022



CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 20th day of May, 2022, the foregoing Respondent's Answer to Complaint was served via electronic mail on:

Brendan Collins (bcollins@gkglaw.com)

A handwritten signature in black ink, appearing to read "Wayne R. Rohde". The signature is written in a cursive, flowing style.

Wayne R. Rohde